

#	Case Name	Tentative
		Defendant has also not attached an answer to the Complaint with his motion as required by Section 473(b). Based on the foregoing, Defendant is not entitled to relief under Section 473(b). Accordingly, the motion is DENIED. The court continues the status conference to October 30, 2026 at 9:00 a.m. in Department C28. Prior to that date, the court will review the proposed default judgment packet. If it comports with the necessary requirements, the court will sign the default judgment. If there are omissions, or other shortcomings, the court will issue a minute order prior to the continued date that describes the necessary next steps. Plaintiff shall give notice of this ruling.
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63.	Quick Bridge Funding LLC v. CJC ATL Transport LLC 2024-01429048	Plaintiff Quick Bridge Funding, LLC's unopposed motion for summary judgment against defendant Curtis Grace Jr. as to the first and only cause of action against Defendant for breach of contract is GRANTED. A plaintiff may move for summary judgment of a cause of action under CCP § 437c(f)(1), when the plaintiff asserts that there is "no defense" to that cause of action. The plaintiff's burden of proof on such a motion is defined by CCP § 437c(p)(1), i.e., the plaintiff must prove each element of the cause of action that entitles the plaintiff to judgment on that cause of action. <i>Paramount Petroleum Corp. v Superior Court</i> (2014) 227 CA4th 226, 241, 173 CR3d 519. Plaintiff seeks adjudication that Grace breached the settlement agreement between the parties and seeks damages thereon. A settlement agreement is a contract, and its validity is judged by the same legal principles applicable to contracts generally. <i>Stewart v. Preston Pipeline Inc.</i> (2005) 134 Cal.App.4th 1565. The elements of a cause of action for breach of contract are: 1. the contract, 2. the plaintiff's performance or excuse for nonperformance,

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		3. the defendant's breach, and 4. damage to the plaintiff <i>Bank of America, N.A. v. Roberts</i> (2013) 217 Cal.App.4th 1386. The declaration of Sandra Otero, COO of plaintiff Quick Bridge offers evidence that supports a finding plaintiff has met its initial burden of proof on summary judgment. She testifies: On or about June 14, 2023, CURTIS GRACE JR ("Defendant") electronically executed and delivered to Quick Bridge a Settlement Agreement (the "Settlement Agreement") via AdobeSign, whereby Defendant agreed to pay \$50,000.00 to Quick Bridge in exchange for a release of claims against him regarding the failure to repay sums due under a loan agreement. On June 14, 2023, I electronically executed the Settlement Agreement on behalf of Quick Bridge via AdobeSign. Defendant was to make monthly installment payments to Quick Bridge starting July 14, 2023 and continuing on the 14th of each month until the \$50,000.00 was paid in full. Attached hereto as Exhibit "1" is a true and correct copy of the Settlement Agreement. Otero declaration paragraph 4, ROA #73. Otero further testifies Grace defaulted on the agreement by failing to make payment when due, (paragraph 6, Otero dec.) plaintiff exercised its option to demand the remaining balance of the agreed payment (paragraph 7) and there is a remaining balance due of \$44,750.00. (Otero dec., paragraph 9.) Because plaintiff has met its initial burden justifying summary judgment, the burden now shifts to Grace to provide evidence of a disputed fact with regard to breach of the settlement agreement. Because Grace has not filed an opposition to this motion, he has not met his now shifted burden and summary judgment is appropriate. Plaintiff to prepare the formal order within 10 days. Plaintiff shall be prepared to address whether the defendant's name is Curtis Grace (See Exhibit 1 to Otero Decl.) or Curtis Grace Jr. (See Amendment to Compl, ROA 14). The court sets a status conference regarding the preparation of the formal order for October 30, 2026 at 9:00 a.m. Plaintiff shall give notice of this ruling.

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